

RUBY LIMITED OPEN CODE LICENSE (RLOCL)

Version: 1.0

Effective Date: 26/09/2026

PREAMBLE:

This Ruby Limited Open Code License (the "RLOCL") is version 1.0 and is effective as of 26/09/2026. The RLOCL sets forth the universal terms and conditions applicable to all software products published under the Ruby Limited Open Code License.

ART. 1: LICENSE INFORMATION AND USER RIGHTS

1.1 Nature of the License

This License is a proprietary, source-available license issued by Akenayō Entertainment & Technology (the "Licensor"). This License is not an open source license within the meaning of the Open Source Initiative definition and does not grant unlimited rights of use, modification, or redistribution of the Software.

The entity authorized to publish the Source Code and the Software under this License, and to exercise the administrative permissions set forth in Section 1.3, is Akenayō Ruby (the "Studio").

1.2 Contractual Documents

Use of the Software is governed by two separate documents:

- A. This Ruby Limited Open Code License (RLOCL), which governs access to the Source Code, modification rights, and restrictions on use of the Software;
- B. The End User License Agreement (EULA), which governs use of the compiled software, ancillary services, license management, and support.

In the event of a conflict between the two documents, the RLOCL shall control, unless otherwise agreed in writing.

1.3 Administrative Permissions

The Licensor, Akenayō Entertainment & Technology, grants to the Studio, Akenayō Ruby, the following administrative permissions:

- A. Modification and repeal of existing articles of this License;
- B. Creation of new articles;
- C. Granting to other users the right to use the Software under the terms of this License;
- D. Publication of the Source Code and the Software under the Ruby Limited Open Code License.



Such permissions may be exercised solely by Akenayō Ruby and are not transferable to third parties without the Licensor's prior written consent.

1.4 User Obligations

The user (the "Licensee") shall:

- A. Comply with this License;
- B. Comply with the EULA, if the Licensee installs or uses the Software in compiled form;
- C. Comply with all regulations issued by the Studio in connection with the Software.

1.5 Acceptance

Installation, copying, modification, or use of the Software constitutes full and unreserved acceptance of the terms of this License. Any violation may be prosecuted under applicable law.

1.6 Termination and Expiration

- A. The Licensee may terminate this License through the dedicated account panel, or upon account deletion, if such system is available.
- B. This License shall automatically terminate upon deletion of the Software and all copies of the Source Code, even in the absence of an account, as provided in Art. 2.5.

1.7 Relationship with the EULA

A Licensee who installs or uses the Software in compiled form must separately accept the EULA. Failure to accept the EULA precludes use of the compiled software but does not affect the rights granted under this License with respect to the Source Code.

ART. 2: AMENDMENT OF THE LICENSE

2.1 General Principles

This License may be amended solely in accordance with the procedures set forth in Sections 2.2 and 2.3. Amendments shall not have retroactive effect and shall not affect rights accrued prior to their effective date.

2.2 Amendments Reserved to the Studio (unilateral procedure)

- A. The Studio may amend this License, by unilateral decision, solely for the following reasons:
 - a. adaptation to newly enacted laws or regulations, whether national, European, or of third countries in which the Studio operates;
 - b. information security requirements, vulnerability remediation, or compliance with industry standards;
 - c. correction of material errors or provisions that have become inapplicable;
 - d. organizational or technical changes to the Software requiring an update to the terms of use.



- B. The Studio shall provide at least 30 days' prior notice of the amendment, by email to the address associated with the account and by posting on the official website.
- C. During the notice period, a Licensee who qualifies as a consumer under the Italian Consumer Code shall have the right to terminate this License without penalty and without providing any reason, through the account panel or by written notice to the Studio.
- D. If the notice period expires without termination, the amendments shall take effect. Continued use of the Software constitutes acceptance of the amendments.

2.3 Amendments Proposed by the Community (participatory procedure)

- A. Any registered Licensee may propose to the Studio an amendment to this License concerning solely:
 - a. the addition, modification, or removal of license tiers (e.g., User-Self, Dev-Support, Enterprise);
 - b. the organization of distribution channels (LTS, no-LTS, InDev);
 - c. the methods of access to support services;
 - d. any other technical or managerial aspect not falling within the reasons set forth in Section 2.2, paragraph A.
- B. The proposal must be reasoned and published on the official repository or dedicated forum, where other Licensees may discuss it and express their opinion.
- C. If the proposal receives the support of a majority of voting Licensees (51%), the Studio shall evaluate it and, if compliant with applicable law and the Studio's interests, incorporate it into the License.
- D. The approved amendment shall be communicated with 3 weeks + 5 business days' prior notice, during which dissenting Licensees may terminate this License without penalty.
- E. During the notice period, amended articles shall be marked with an asterisk (*) in the published version of the License.

2.4 Emergency Amendments

- A. In the event of immediate necessity arising from one of the reasons set forth in Section 2.2, paragraph A, subparagraphs a. and b., the Studio may amend this License with immediate effect, notifying users within 5 business days.
- B. The emergency amendment shall be valid for a maximum of 30 days, during which the Studio shall initiate the procedure set forth in Section 2.2 for definitive confirmation.
- C. If the amendment is not confirmed, it shall cease to have effect and the previous version of the License shall apply.
- D. Articles subject to an emergency amendment shall be marked with an apostrophe (') and shall be accompanied by a clear statement of the intentions and reasons for the amendment.



2.5 Automatic Termination upon Deletion

This License shall automatically terminate, without the need for further notice, upon the Licensee's deletion of the Software and all copies of the Source Code in its possession, regardless of whether an account exists. In such case, the Licensee shall cease all use of the Software and destroy any remaining copies.

2.6 Information and Contacts

For any information concerning amendments to the License, the Licensee may contact the Studio's legal email address. If the Licensee believes an article is non-compliant with applicable law, it may open a case through the Studio's official channels.

ART. 3: LICENSE TIERS

3.1 General Principle

The Studio offers three types of license. Each license is designed for a specific target and for a different level of support. The license does not change the Software or the Source Code but governs solely the support provided by the Studio and the versions available.

3.2 User-Self License

- A. The User-Self license does not guarantee any dedicated support, except:
 - a. the ability to open issues on GitHub for critical bugs;
 - b. access to the Studio's official support email.
- B. Licensees with a User-Self license have access solely to LTS versions (official releases supported by the Studio) and Beta versions. Legacy and InDev versions are not supported.

3.3 Dev-Support License

- A. The Dev-Support license grants:
 - a. support through a dedicated Discord channel with the Studio's developers, accessible to all Licensees on this plan;
 - b. the ability to request support for local issues and obtain dedicated fixes;
 - c. access to the Patreon channel;
 - d. access to Legacy versions, in addition to LTS and Beta versions.
- B. The support referred to in paragraph A, subparagraph b., is provided within the limits of the Studio's resources and does not constitute a guarantee of resolution within predefined timeframes, unless otherwise agreed in writing.



3.4 Enterprise License

- A. The Enterprise license grants:
 - a. access to the dedicated Discord server for support;
 - b. a customized contact email;
 - c. access to the Patreon channel;
 - d. access to InDev and PreRelease versions, both in the form of Source Code and in the form of precompiled Software;
 - e. the ability to request custom modifications to the Software to adapt it to the company's systems.
- B. Requests for custom modifications referred to in paragraph A, subparagraph e., are subject to evaluation and quotation by the Studio and are not automatically included in the plan.

3.5 Relationship with the EULA

The EULA of each product must comply with the license tiers set forth in this Art. The EULA may provide for additional benefits or limitations, provided they do not conflict with this License.

ART. 4: PRICING AND MINIMUM REQUIREMENTS

4.1 Determination of Prices

The prices of all plans are set forth in the EULA of each product, except for the User-Self license, which is free for all Licensees who do not use the Software for profit or in a corporate or institutional context, and the Dev-Support license, whose maximum annual price is set forth in Section 4.4.

4.2 Revenue Thresholds

Access to the different plans is subject to the Licensee's annual revenue, according to the following thresholds:

- A. annual revenue from 0 USD to 200,000 USD: User-Self license;
- B. annual revenue from 200,001 USD to 500,000 USD: Dev-Support license;
- C. annual revenue exceeding 500,000 USD: Enterprise license.

4.3 Definition of Revenue

For purposes of this Art., "revenue" means exclusively the revenue that the Licensee generates from the professional activity carried out using the Studio's products. Income from other sources is not considered.



4.4 Price of the Dev-Support License

The price of the Dev-Support license shall not exceed 500 USD per year per Licensee. The final price, within such maximum limit, is set forth in the EULA of each product.

ART. 5: SOURCE CODE RIGHTS AND DISTRIBUTION CHANNELS

5.1 Source Code Usage Rights

The Licensee may use the Source Code to:

- A. integrate it with other projects;
- B. develop commercial products;
- C. study and academic purposes.

5.2 Attribution Obligation

The Licensee must clearly and conspicuously state that the final product uses the Software or contains code created by the Studio. The attribution must include the Studio's name and a reference to the official repository, unless otherwise agreed in writing.

5.3 Distribution of Modified or Integrated Versions

- A. Distribution of the Source Code is permitted only if:
 - a. the Source Code is integrated into a larger work containing original contributions by the Licensee, including, without limitation, an application, an engine, or a software product;
 - b. a clear mention of the Studio is present in accordance with the methods set forth in Section 5.2.
- B. Mere redistribution of the original Source Code, unmodified and not integrated into a larger work, is prohibited.
- C. Versions modified by the Studio may not be distributed to third parties outside the Studio.
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5.5 Distribution Channels

- A. A. The Studio distributes the Source Code and the Software via GitHub.
- B. B. Legacy and InDev versions are made available upon request to the Licensee holding the corresponding license tier, or through the dedicated Discord channels.



5.6 Restrictions on InDev and PreRelease Versions

Licensees with access to InDev or PreRelease versions may not release the program code in open source mode or with visible code. They may distribute solely the finished compiled program.

5.7 License Separation

- A. The Studio's Source Code may be integrated into larger projects distributed under different licenses, including copyleft licenses (e.g., GPL, AGPL).
- B. In such case, the classes, modules, and code files created by the Studio retain the original license set forth in this License.
- C. The obligation to distribute the work as a whole under the license of the larger project does not automatically extend to the Studio's classes, modules, and code files, provided that they are clearly identifiable and separable within the project and retain their relevant copyright and license notices.
- D. In the event of a conflict between this License and the license of the larger project, this License shall control solely with respect to the Studio's classes, modules, and code files.

ART. 6: INTELLECTUAL PROPERTY, WARRANTY, AND GOVERNING LAW

6.1 Intellectual Property

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6.2 Warranty

The Software is provided "AS IS" and "AS AVAILABLE." The Studio makes no warranty, express or implied, of functionality, merchantability, fitness for a particular purpose, or absence of errors, to the fullest extent permitted by applicable law.

6.3 Limitation of Liability

To the fullest extent permitted by law, the Studio shall not be liable for indirect, incidental, special, or consequential damages, nor for loss of data, profits, or business interruption. The Studio's total liability shall not exceed the amount paid by the Licensee in the last 12 months.

6.4 Termination

This License shall automatically terminate in the event of a breach of its terms. Upon termination, the Licensee must cease all use of the Software and destroy all copies in its possession.



6.5 Governing Law and Venue

- A. This License shall be governed by the laws of Italy.
- B. For disputes with Licensees acting as professionals or businesses, the courts located in Milan, Italy, shall have exclusive jurisdiction.
- C. For disputes with Licensees acting as consumers under the Italian Consumer Code, the courts of the consumer's place of residence or domicile shall have jurisdiction, in accordance with applicable law.
- D. Nothing in this License shall affect any mandatory consumer protection provisions under applicable law.

6.6 Severability

If any provision of this License is held invalid or unenforceable, the remaining provisions shall remain in effect. If any provision conflicts with a mandatory rule of the Licensee's country of residence, the local rule shall prevail, and the provision shall be deemed modified to the minimum extent necessary to comply.

[CONTACTS]

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